

HOUSE No. 5419

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, May 11, 2026.

The committee on Public Service, to whom was referred the petition (accompanied by bill, House, No. 3900) of Kathleen R. LaNatra and John R. Gaskey (by vote of the town) that the town of Kingston be authorized to raise the maximum retirement age of special police officers in said town to 70 years old, reports recommending that the accompanying bill (House, No. 5419) ought to pass [Local Approval Received].

For the committee,

DANIEL J. RYAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the raising the maximum retirement age of special police officers in the town of Kingston to 70 years old.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 652 of the Acts of 1989 is hereby repealed.

2 SECTION 2. The Select Board of the Town of Kingston may annually appoint retired
3 police officers of the Town of Kingston as special police officers following the recommendation
4 of the Chief of Police to perform police details or other police duties arising from police details
5 or during the course of police detail work, whether or not related to the detail work. The retired
6 police officer shall have been a regular, full-time police officer who retired in good standing and
7 based on superannuation. A special police officer appointed pursuant to this act shall not be
8 subject to the maximum age restrictions for police officers set forth in chapter 32 of the General
9 Laws, but shall not be eligible to serve as a special police officer once the special police officer
10 has reached the age of 70. No further deductions shall be made from the regular compensation of
11 any special police officers appointed pursuant to this act under Chapter 32 of the General Laws
12 for any service performed subsequent to their reaching the age of 65.

13 SECTION 3. Prior to appointment as a special police officer pursuant to this act, a
14 retired police officer shall: (i) pass a medical examination conducted by a physician selected by
15 the chief of police of the Town of Kingston to determine whether the retired police officer is
16 capable of performing the essential duties of a special police officer; and (ii) provide proof of
17 that passage to the chief of police. Additional post-appointment fitness for duty examinations
18 may be required of a special police officer by the chief of police if, in the chief of police's sole
19 discretion, a question as to that special police officer's fitness for duty has arisen. The cost of all
20 medical examinations pursuant to this section shall be borne by the retired or special police
21 officer.

22 SECTION 4. A special police officer appointed pursuant to this act shall be subject to
23 the Town policies, procedures, rules and regulations of the police department of the Town of
24 Kingston including, but not limited to, those policies, procedures, rules and regulations
25 governing training, equipment, uniforms, certifications or any other restrictions or requirements
26 related to employment as a special police officer. A special police officer appointed under this
27 act shall comply with all requirements of chapter 6E of the General Laws, including: (i)
28 maintaining certification and good standing with the Massachusetts Peace Officer Standards and
29 Training Commission; and (ii) complying with all annual in-service and other training
30 requirements mandated by the municipal police training committee.

31 SECTION 5. A special police officer of the Town of Kingston, while performing the
32 duties described in this act, shall have the same power of arrest and authority to perform other
33 police functions as a full-time, regular police officer of the Town of Kingston.

SECTION 6. A special police officer shall be appointed annually for a term of 1 year commencing on July 1, but shall serve at the pleasure of the Town of Kingston and may be suspended or removed from the appointment by the Board of Selectmen at any time. In the case of removal, the special police officer shall be provided with 14 days written notice before removal.

SECTION 7. The chief of police of the Town of Kingston may restrict the type of detail assignments that special police officers may work. The cost of all training equipment and uniforms shall be borne by the special police officer except as otherwise determined by the chief of police.

SECTION 8. Special police officers of the Town of Kingston shall be sworn before the clerk of the Town of Kingston, who shall keep record of all appointments and expirations of appointments.

SECTION 9. The assignment of a special police officer pursuant to this act to a police detail or other duties shall be at the discretion of the chief of police of the Town of Kingston.

SECTION 10. A special police officer appointed pursuant to this act shall be subject to the limitations on hours worked and earnings restrictions in section 91 of chapter 32 of the General Laws.

SECTION 11. This act shall take effect upon its passage.